Miami County Common Pleas Cour
04/03/2023 11:17 AM
Shawn M. Peeples
Clerk of Courts

IN THE COURT OF COMMON PLEAS
MIAMI COUNTY, OHIO

DANIELLE BAKER 808 Caribou Court Piqua, OH 45356 Plaintiff-Appellant	)	CASE NO.: 23-117 JUDGE: JEANNINE N. PRATT, JUDGE
v.	)	**COMPLAINT**
OHIO'S HOSPICE INC. 7575 Paragon Road Dayton, OH 45459	)	Workers' Compensation
And	)	**REQUEST FOR JURY DEMAND**
JOHN LOGUE, ADMIN, BWC 30 West Spring Street Columbus, Ohio 43215 Defendant-Appellees.	)	

1. This action was commenced in Miami County, in which county the industrial injury was sustained, by the Plaintiff DANIELLE BAKER and the Defendant, OHIO'S HOSPICE INC., filing a Notice of Appeal with this Court under the provision of Ohio Revised Code Section 4123.512.

2. The Plaintiff-Appellant, DANIELLE BAKER, alleges that at all times mentioned herein, OHIO'S HOSPICE INC. was duly organized and existing and licensed to do business in the State of Ohio and that on or about July 17, 2021 and at all times relevant hereto, employer was amendable to the Workers' Compensation Act of Ohio and had furnished all of the requisites thereto.

3. Plaintiff-Appellant further alleges that all times mentioned herein,

John Logue is the duly appointed, qualified Administrator of the Bureau Workers' Compensation by virtue of the statutes of the State of Ohio.

4. Plaintiff-Appellant further alleges that at all times mentioned herein, the Industrial Commission of Ohio is a duly organized and existing Commission by virtue of the statutes of the State of Ohio and is charged with the administration of the Workers' Compensation act of Ohio.

5. Plaintiff-Appellant further alleges that on or about July 17, 2021 she sustained an injury in the course of and arising out of her employment for OHIO'S HOSPICE INC. which caused her to be disabled in excess of seven (7) days.

6. Plaintiff-Appellant further alleges that she filed an application based on this injury with the Bureau of Workers' Compensation and that it was designated as Claim No. 22-155661 and said claim was allowed CONTESTED.

7. Plaintiff-Appellant further alleges that a hearing came on to be heard before the District Hearing Officer in Fairborn, Ohio on September 28, 2022. The following order was mailed to the parties on October 6, 2022:

> The Claimant voluntarily waived the right to appear in person for today's hearing.
>
> It is the order of the District Hearing Officer that the Claimant's FROI-1 First Report of an Injury, Occupational Disease or Death, filed 7/2/2022, is denied.
>
> It is the order of the District Hearing Officer that the claim is DISALLOWED in its entirety.
>
> The District Hearing Officer finds that the Claimant has failed to sustain her burden of proving an injury in the course of and arising out of her employment on or about 7/17/2021.

At hearing, the Claimant request the claim be allowed for the condition of transverse myelitis on the basis that it developed as a complication of a covid-19 infection sustained by the Claimant in approximately December 2020, in the alternative that it developed as a complication of a covid-19 vaccination the Claimant received in June of 2021, or that it was a development of both he covid-19 infection and the covid-19 vaccination.

The District Hearing Officer finds insufficient evidence of a covid-19 infection causally related to the Claimant's employment in December 2020, nor is there sufficient evidence to support that the covid-19 vaccination the claimant received in June 2021 was causally related to her employment.

At hearing, the Claimant testified that she received her tow covid-19 vaccinations on 6/4/2021 and 6/26/2021. The Claimant testified that she felt she needed to get her vaccination because the Employer sent an email in May 2021, filed 8/11/2022, which encouraged employees to get vaccinated and indicated that paid leave would no longer be offered for employees with covid-19 infections or vaccine reactions after 7/1/2021. The District Hearing Officer does not find evidence within the email, or the electronic claim file, that the covid-19 vaccination was mandated by the Employer. The Claimant further testified that shew knew the vaccination was not mandatory and that her continued employment was not conditioned upon receiving the vaccination.

The report of Steven Wunder, M.D., dated 9/13/2022, opines that there is insufficient evidence to support the requested condition and the Claimant's symptoms causally related to her employment.

This finding is based on the reasoning set forth above; and the report of Dr. Wunder, dated 9/13/2022.

The Self-Insuring Employer is hereby ordered to comply with the above findings.

All the evidence was reviewed and considered in rendering this decision.

8. Plaintiff-Appellant further alleges she timely filed an appeal to the Staff Hearing Officer Order and that appeal came on for hearing in Fairborn, Ohio on January 20, 2023 and the following order was mailed to the parties on January

25, 2023:

> The order of the District Hearing Officer, issued 10/6/2022, is affirmed.
>
> It is the order of the Staff Hearing Officer that the FROI-1 First Report of an Injury, Occupational Disease or Death Application filed 7/2/2022, is denied.
>
> The Staff Hearing Officer finds the Claimant has not met her burden of proving by a preponderance of the evidence that she sustained an injury or contracted an occupational disease in the course of and arising out of her employment with the Employer on or about 7/17/2021.
>
> Therefore, it is ordered that this claim is specifically DISALLOWED.
>
> This decision is based on the medical report of Steven Wunder, M.D., dated 9/13/2022 11/4/2022 and 1/12/2023.
>
> The Self-Insuring Employer is hereby ordered to comply with the above findings.
>
> All of the evidence was reviewed and considered and rendering this decision.

9. Plaintiff-Appellant further alleges that she timely filed an appeal to the Industrial Commission of Ohio and that on February 10, 2023 the Industrial Commission refused to hear Plaintiff-Appellant's appeal and affirmed the Decision of the Staff was received on February 20, 2023.

10. Plaintiff-Appellant further alleges that she thereafter filed a Notice of Appeal with this Court as indicated in Paragraph 1 of the Complaint-Petition.

WHEREFORE, Plaintiff-Appellant prays for judgment against OHIO'S HOSPICE INC. asks that she be allowed to participate in the benefits of the Workers' Compensation Act of Ohio, and for all legal costs to which she is entitled, including statutory attorney fees.

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TO THE CLERK:

Please serve a copy of the foregoing Complaint by Certified U.S. Mail, returnable according to law, upon the Defendants at the addresses listed at the heading of this Complaint.

James E. Gardner
Attorney for Plaintiff-Appellant